

		<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6 (allegations that defendant was guilty of “oppression, fraud and malice” could not be stricken where the complaint contained sufficient facts to support such allegation.). Defendant argues that Plaintiff failed to identify a specific managing agent of the corporation that ratified the fraud. In <i>Dhital</i>, the court held that the manufacturer’s authorized dealership were its agent for purposes of the sale of its vehicles to the consumers, and that this relationship was sufficient to establish a duty to disclose – without requiring the identification of a specific individual. Liability was established through the manufacturer’s agents. As ruled above, Plaintiff has alleged sufficient facts to state a cause of action for fraudulent concealment, and thus grounds for an award of punitive damages. Accordingly, the motion to strike punitive damages is DENIED. <i>Civil Penalties</i> Ford argues Plaintiff’s request for civil penalties should be stricken because she failed to allege she complied with the new notice requirements for the Song-Beverly cases established by CCP § 871.24(a). But paragraph 23 of the FAC states that “Plaintiff made a request for repurchase of the Subject Vehicle compliant with the requirements of CCP 871.24. Defendant has failed to timely comply with its obligations under the Act.” Such allegation is sufficient to comply with Section 871.24. Accordingly, the motion to strike civil penalties is DENIED. Clerk to give notice.
8	Libertucci vs. Cooper 2023-01370576	Motion for Sanctions No tentative. Order to Show Cause re: Failure to Appear
9	Wei vs. Sarkis 2025-01509812	Demurrer to Complaint Defendants Anthony M. Sarkis and Shivangini Chudhary’s